

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Justice Jamal Khan Mandokhail
Justice Irfan Saadat Khan

Criminal Petition No. 653 of 2026

(Against the order dated 24.02.2026 passed by the
High Court of Sindh, Circuit Court Mirpurkhas in
Crl. Bail Application No. S-10/2026)

Hussain Bux

...Petitioner(s)

Versus

The State thr. P.G. Sindh

...Respondent(s)

For the Petitioner(s)

: Mr. Mallag Assa Dashti, ASC
(video-link, Karachi)
Syed Rifaqat Hussain Shah, AOR

For the State

: Mr. Saleem Akhter Buriro, Addl. P.G.
Sindh (video-link, Karachi)

Date of Hearing

: 14.05.2026

ORDER

IRFAN SAADAT KHAN, J.- Through this order, we intend to dispose of the instant petition for post-arrest bail arising out of FIR No. 69/2025, registered on 20.11.2025 at 13:30 hours at Police Station Diplo, District Tharparkar. The case involves allegations under Sections 302, 147, 148, 149, 114, and 34 of the Pakistan Penal Code (PPC), in relation to an occurrence that allegedly took place on 19.11.2025 at 14:30 hours.

2. According to the contents of the FIR, the complainant, Abdul Salam, alleged that his brother, Muhammad Ramzan (the deceased), was sitting in his white-coloured car on the roadside near Village Malhopot, simultaneously, a black car belonging to the petitioner, Hussain Bux Rajar, arrived at the spot. It is alleged that the petitioner stepped out of the vehicle holding a pistol, along with co-accused Shoukat Rahimon (a police official duly armed with a rifle), Parkash Meghwar (Police Official)

Lal Bajeer (Driver/Police Official) and Phelaj resident of Diplo city. The prosecution story states that upon the specific instigation (*Lalkara*) of the petitioner, Hussain Bux, who allegedly ordered the co-accused to fire upon and kill the deceased. Co-accused Shoukat Rahimon then opened fire, inflicting a fatal injury that led to the death of Muhammad Ramzan. The petitioner's post-arrest bail application was dismissed by the 1st Additional Sessions Judge, Tharparkar @ Mithi on 09.01.2026, and his subsequent prayer for bail was turned down by the High Court of Sindh, Circuit Court Mirpurkhas also vide order dated 24.02.2026 in Crl. Bail Application No. S-10/2026, leading to the present petition.

3. Mr. Mallag Assa Dashti, learned ASC appearing on behalf of the petitioner, contends that the petitioner is innocent and has been falsely implicated in the instant case. He emphasized that the specific allegation and the role attributed to the petitioner is restricted to a mere verbal assertion of instigation (*Lalkara*) only. He argued that the FIR was delayed by eleven days without any plausible explanation, casting a serious doubt of fabrication and deliberation on the prosecution's narrative. He further submitted that neither any direct overt act of firing or causing injury is attributed to the petitioner nor has any weapon or incriminating material been recovered from his possession, during the investigation. He concluded that the case against the petitioner falls squarely within the category of 'further inquiry', as envisioned under Section 497(2) of the Cr.P.C., making the petitioner him entitled to the concession of bail.

4. On the other hand, the learned Additional Prosecutor General appearing for the State, has strongly opposed the instant bail petition. He contended that the offence is heinous and falls within the boundaries of the prohibitory clause of Section 497, Cr.P.C. He submitted that the petitioner arrived at the crime scene in his own vehicle duly armed with a

weapon and actively participated in the offence by instigating the principal accused to commit the murder. He argued that under the principle of constructive liability, as envisaged under Section 34 PPC, the petitioner's presence and catalytic role are sufficient to disentitle him to any leniency at this stage and prayed that this bail petition may be dismissed.

5. We have heard the learned counsel for the parties at length and have perused the record.

6. A perusal of the record reveals that the registration of the FIR was delayed by eleven days, a substantial hiatus that requires strict validation during trial to rule out deliberation, consultation or padding. The role attributed to the petitioner is distinctly separable from that of the principal co-accused, Shoukat Rahimon, who is alleged to have executed the actual crime by opening fire upon the deceased whereas the role attributed to the present petitioner is limited to an oral provocation or *Lalkara* only. It is a well-settled principle of criminal jurisprudence that the question of whether an instigation (*Lalkara*) was effective, or whether it was merely a standard padding to implicate an influential adversary, can only be determined after recording of evidence at trial stage. No direct injury, overt act physical injury or firing is attributed to the petitioner nor has any incriminating recovery been effected from his possession to connect him conclusively with the commission of the offense, as his role is stated to be that of *lalkara* only.

7. We, therefore, without touching upon the merits of the case, are of the considered view that the petitioner-accused has been successful in making out a case for grant of bail. Reference in this regard may be made to the case of *Qurban Ali v. The State and others* (2017 SCMR 279), where bail was granted after finding that the role of the accused was that of *lalkara* only. Reliance is further placed upon *Abdul Rehman v. Javed and*

2 others (**2002 SCMR 1415**), wherein this Court observed that where an accused is merely assigned the role of raising a *lalkara* or firing in the air without targeted execution, the question of dynamic intent and shared liability attracts the provisions of further inquiry under Section 497(2) Cr.P.C. Needless to state that the observations made above are only tentative in nature and should not prejudice the case of either party at Trial Court stage.

8. These are the reasons for our short order dated 14.05.2026, which is reproduced hereinbelow:

"For reasons to be recorded later, this petition is converted into an appeal and allowed. The appellant is granted bail after arrest subject to furnishing bail bonds in the sum of Rs.100,000/- with one surety in the like amount to the satisfaction of the learned Trial Court concerned."

Islamabad

14.05.2026

'NOT APPROVED FOR REPORTING'

Arshed/Zainab Qazi, Judicial LC